

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF ACHILOV AND OTHERS v. RUSSIA

(Applications nos. 10780/07 and 54004/07)

JUDGMENT

STRASBOURG

9 June 2020

This judgment is final but it may be subject to editorial revision.



In the case of Achilov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Helen Keller, *President,*
María Elósegui,
Ana Maria Guerra Martins, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having deliberated in private on 5 May 2020,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in two applications (nos. 10780/07 and 54004/07) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention"). The first application (no. 10780/07) was lodged by three Russian nationals, Mr Zufar Karsheyevich Achilov, Mr Vladimir Viktorovich Ivanov and Mr Gagik Eduardovich Avanesyan ("the applicants"), on 1 February 2007. Further complaints were lodged on 11 November 2007, 5 September 2008, 14 February 2009, 16 October 2009 and 2 September 2011. The first applicant was represented by Mr S. Bogdanov and then by Ms S. Nugayeva and Ms A. Soboleva. The third applicant was represented by Mr V. Kosorukov. As of May 2019 the second applicant was represented by Mr S. Bogdanov.

2. The second application (no. 54004/07) was lodged by Mr Vladimir Viktorovich Ivanov on 14 October 2007.

3. The Russian Government ("the Government") were represented by Mr G. Matyushkin, Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr M. Galperin.

4. On 14 November 2011 and 13 January 2012 the Government were given notice of the applications.

THE FACTS

I. THE CIRCUMSTANCES OF THE CASE

5. Mr Achilov was born in 1958 and is detained in Saratov. Mr Ivanov and Mr Avanesyan were born in 1959 and 1965 respectively; their current whereabouts are not known to the Court.

A. Rally of 22 April 2006

6. On 11 April 2006 Mr Ivanov notified the Gelendzhik town administration of his intention to hold a public meeting at 11 a.m. on 22 April 2006 on the steps of a local cinema, followed at 1 p.m. by a march to protest against corruption among public officials. The first and third applicants were designated as the persons assisting the event organiser (*уполномоченные лица*).

7. On 15 April 2006 the town mayor wrote to Mr Ivanov stating that the cinema building (including its steps) was a municipal institution and that the consent of its owner should therefore have been obtained. Moreover, the march was due to go through an area in the vicinity of a court, which was prohibited by the Public Events Act (PEA). Lastly, the event organiser should have specified in the request how he intended to ensure public safety and, if necessary, provide medical assistance during the public event. The mayor therefore requested Mr Ivanov to refrain from holding the event.

8. On 18 April 2006 the first and second applicants wrote to the mayor's office stating that the requirements imposed by the mayor were unlawful and that the event would proceed as planned.

9. On 21 April 2006 the acting officer of the town housing committee lodged a criminal complaint with the police indicating that leaflets calling on people to take part in the rally on 22 April 2006 had been placed on the walls of municipal buildings. A pre-investigation criminal inquiry was initiated immediately in relation to unspecified criminal offences.

10. According to the applicants, on 22 April 2006 they were "invited" to the local police station for interviews as part of this pre-investigation inquiry. The police issued summonses under Article 73 of the Code of Criminal Procedure ("Circumstances to be proven in criminal proceedings") for interviews to be held at 10.30 a.m. on 22 April 2006. Apparently, the applicants were handed those summonses when they were already in the police station on that date.

11. According to the applicants, they were kept there for three hours until the end of the time allotted for the public event. The doors of the police station were locked and were guarded by two armed officers. No arrest record was drawn up. According to the Government, the applicants left the police station after the end of their interviews.

12. On 8 June 2006 the applicants sought the institution of criminal proceedings against the police officers concerned and the town administration. They alleged that the public officials' actions constituted the ingredients of a number of criminal offences such as impeding a public event, abuse of power and unlawful arrest or detention (Articles 149, 286 and 301 of the Criminal Code). They stated as follows in their criminal complaint:

"We distributed information across the town inviting people and mass media outlets to the public event ... However, it did not happen because the event organiser [the second applicant] and the persons assisting the organiser [the first and third applicants] were invited for an interview (*беседа*) with Chief Police Officer F. at 10.30 a.m. and then were held in the police station until 1.30 p.m. It happened as follows:

At 10.20 a.m. the bus carrying the equipment for the public event approached the cinema building ... Officer D. approached [the first and second applicants] and suggested that they drive in the bus to the police station in order to attend an interview with Chief Officer F. in relation to the forthcoming public event. [The second applicant] agreed and drove to the police station, counting on D.'s assurances that the interview would not take long. During the interview F. required [the applicants] to produce written statements in relation to a recent complaint from the local housing committee concerning the suspicion that [the applicants] had damaged the walls of municipal buildings ... [The first and second applicants] denied the accusations ... We were then interviewed until 11 a.m. and expressed our wish to leave in order to take part in the public event. However, the chief officer stated that we would be interviewed again and therefore had to stay in the police station. We protested and insisted on being released ... We went down from the fourth to the first floor and attempted to leave the building. However, the entrance was guarded by officers with guns who closed the door ... Chief Officer F. then said that he was busy and told us to wait in the lobby ... A further interview was then carried out and ended at 11.56 a.m. Afterwards, the guards again refused to let us leave the building without properly documented summonses ... It then took an hour and a half for F. to prepare them ... We received them at 1.40 p.m. and left the building ..."

13. On 11 June 2006 an investigator issued a decision not to prosecute the public officials concerned.

14. The applicants sought judicial review of this decision under Article 125 of the Code of Criminal Procedure. On 28 June 2006 the Gelendzhik Town Court of the Krasnodar Region upheld the refusal. On 2 August 2006 the Krasnodar Regional Court upheld that decision on appeal.

B. Solo demonstration of 23 April 2007

15. On 23 April 2007 Mr Achilov held a solo demonstration in front of the local legislature building. He had several placards, one of which stated "Down with Putin and Tkachev!". He was arrested and spent the night in the police station. On 24 April 2007 a justice of the peace found him guilty of the offence of minor hooliganism under Article 20.1 of the Code of Administrative Offences ("the CAO") and sentenced him to two days' administrative detention. The judgment read as follows:

"[The applicant] called openly for the overthrow of the Head of the State and the Governor of the Krasnodar Region; he spoke loudly and behaved defiantly; he tried to hit a police officer with a placard; he resisted the officers and grabbed their uniforms; he did not respond when spoken to and tried to run away. He thereby disrespected public order.

> [The applicant] pleaded guilty.
>
> His guilt is confirmed by the officers' reports, their statements and the arrest record."

16. The applicant served his sentence.

17. In May 2007 the applicant also lodged a criminal-law complaint alleging that public officials had impeded the public event of 23 April 2007. He received no reply.

18. The applicant appealed against the judgment of 24 April 2007, arguing that he had not used any offensive language and had not behaved in an unruly manner. On 10 May 2007 the Leninskiy District Court of Krasnodar set aside the judgment of 24 April 2007 and discontinued the proceedings because the trial court "had not taken proper account of the nature of the offence or aggravating or mitigating circumstances".

19. The applicant then brought civil proceedings seeking, *inter alia,* 450,000 Russian roubles (RUB) in compensation for non-pecuniary damage with regard to the impeding of the demonstration by the police, his prosecution in the above-mentioned administrative proceedings and his deprivation of liberty, and conditions of pre-trial and post-trial detention. His statement of claim reads as follows:

> "I was placed in a cell in which I then remained until the trial, in conditions that clearly violated the regulations on the detention of persons for administrative offences (Government Decree No. 627 of 15 October 2003). In particular, the regulations require that where the administrative arrest lasts for more than three hours a detainee is to be provided with food or access to parcels from the next-of-kin and with a bed (when kept overnight) ... I was unable to receive any such parcels ... no food or even water was provided, no bed was provided, so that I had to sleep on a cold bench during the night ... After the trial I was placed for another day in the temporary detention centre ... in breach of the regulations requiring the provision of individual beds and bedding, outdoor exercise for at least one hour ...
>
> I therefore request: compensation in respect of non-pecuniary damage in the amount of 150,000 Russian roubles for each of the three counts mentioned above ..."

20. By a judgment of 18 January 2008 the Gelendzhik Town Court awarded the applicant RUB 10,000 (approximately 270 euros (EUR) at the time). The court held as follows:

> "The applicant lodged a claim in respect of pecuniary and non-pecuniary damage ... He considers that his prosecution for an administrative offence and the sentence of detention caused him physical and mental suffering ...
>
> Article 1100 of the Civil Code provides for compensation in respect of non-pecuniary damage where damage was caused as a result of the application of a sentence of administrative detention ... Thus, having regard to Article 1070 § 1 of the Civil Code, the respondent should pay the claimant compensation in the amount of RUB 10,000, that is, the amount as calculated under Article 1101 of the Civil Code in view of the claimant's physical and mental suffering and the actual circumstances of the case."

21. The applicant appealed. On 13 May 2008 the Krasnodar Regional Court upheld the judgment.

C. Solo demonstration of 9 May 2007

22. Mr Achilov informed the town administration of his intention to hold a group static demonstration in front of the building of the town administration on 9 May 2007, which is a public holiday.

23. On 4 May 2007 the administration wrote to him indicating that on the same date, at the same time and within the same area there would be a military march and a meeting of secondary school pupils. The administration suggested that the applicant hold the event on a square in another area.

24. However, the applicant decided that he would hold a solo demonstration, thus making it unnecessary to obtain approval from the local administration.

25. When the applicant approached the town administration building and raised his placard, he was approached by police officers who tried to take the placard away from him. He was then taken to the police station.

26. On 9 May 2007 a justice of the peace sentenced the applicant to seven days' administrative detention for resisting a lawful order. The court considered that the applicant had not stopped demonstrating despite the order from the police, had not complied with their order to follow police officers to the police station and had grabbed the officers' uniforms trying to escape.

27. In separate proceedings on the same day, having read out the text of Article 20.2 of the CAO and summarised various statements, the same judge convicted the applicant under Article 20.2 of the CAO and sentenced him to a fine of RUB 1,000.

28. The applicant appealed, stressing that he had held a solo demonstration and thus could not be found liable for breaching the Public Events Act or refusing to cease the lawful solo demonstration. On 23 May 2007 the Gelendzhik Town Court upheld the applicant's conviction under Article 19.3 of the CAO in a summary manner. On 1 June 2007 the Town Court upheld the conviction under Article 20.2 of the CAO, stating that after receiving the reply of 4 May 2007 the applicant should have responded to the town administration's proposal of an alternative venue; instead, "he had held a demonstration at a venue that had not been authorised".

29. The applicant also brought civil court proceedings claiming compensation on account of his detention and conditions of detention. On 23 March 2009 the Town Court dismissed his claim. On 12 May 2009 the Regional Court upheld the judgment.

D. Demonstration of 10 August 2007 and related proceedings

1. Facts common to Mr Achilov and Mr Ivanov

30. On 6 August 2007 Mr Achilov and Mr Ivanov lodged a notification with the Gelendzhik town administration, indicating their intention to hold a static demonstration ("picket", *пикетирование*) involving between 10 and 50 people on 10 August 2007 from 7 a.m. to 11 p.m. on the pavement in front of the local prosecutor's office, with the aim of expressing their dissatisfaction with the prosecutors' service.

31. On 6 August 2007 Mr Kh., the Gelendzhik town mayor, sent them a letter indicating that they "should refrain from staging the picket" because of the ongoing works (apparently, roadworks) at that location; given that the pavement was adjacent to the roadway it was not possible to ensure the public's safety.

32. According to the applicants, they inspected the venue and did not see any ongoing reconstruction works there (see also paragraph 36 below). They therefore decided to hold the demonstration as planned.

33. It appears that on 8 August 2007 the mayor's office wrote to Mr A., chief officer of the Department of the Interior of Gelendzhik, informing him of the allegedly unlawful demonstration and asking him to take the appropriate measures. Mr A. instructed officer V. to take the appropriate measures.

34. On 10 August 2007 the first and second applicants, as well as some other persons, started to hold a "picket" in front of the town prosecutor's office. This public event was immediately dispersed by the police (see paragraph 35 below).

35. In October 2007 the first and second applicants sought the institution of criminal proceedings against officers A. and V. under Article 149 of the Criminal Code (unlawfully impeding a public event) in so far as officer V. had not applied the procedure for terminating a public event in accordance with sections 15 to 17 of the Public Events Act; had removed and torn apart three posters and had trampled on three placards that contained messages criticising the prosecutor's office; and had ordered that Mr Ivanov and another person be arrested and taken to the police station.

36. On 15 October 2007 an investigator refused to bring criminal proceedings. The relevant parts of the decision read as follows:

> "It follows from [the applicants'] complaint that they held a static demonstration on 10 August 2007 ... By a letter of 6 August 2007 the town administration had advised against it in view of the reconstruction works (which actually started the day after the administration's letter) ...
>
> Officer A. stated that he had received a notification from the town administration indicating that ... it had recommended to [the applicants] that they refrain from holding the static demonstration because of the reconstruction works near the building housing the prosecutor's office. He therefore considered that holding the

> demonstration near this building would endanger public safety (*общественный порядок*) ... He instructed officer V. to take measures aimed at preventing the demonstration; this meant having a talk with [the applicants] and pointing out that it was not desirable to hold this type of public event near public buildings such as the town administration building or the prosecutor's office, in the interests of public safety ... He gave no instructions to V. as to any forcible termination of the demonstration ...
>
> Officer V. stated that ... he had received no direct order to prevent the demonstration. He saw his unit's task as ensuring public safety during the demonstration ... When he arrived at the venue he saw roadworks going on in the immediate vicinity of the demonstrators ... The demonstrators were standing in the road, impeding traffic and the reconstruction works ... He warned [the second applicant] that it was not acceptable to block the traffic and the reconstruction works. [The second applicant] replied in a rude manner. V. then ordered that the placards containing insulting statements concerning the prosecutor and the staff of the prosecutor's office be removed, in order to put an end to the breach of public order. [The second applicant] and some others attempted to prevent this ... V.'s statement is confirmed by the available video material."

On 20 August 2008 the Regional Court took a final decision on judicial review upholding this refusal.

2. Additional facts relating to Mr Ivanov

37. When the police tried to arrest Mr Ivanov on 10 August 2007, he entered the building housing the prosecutor's office at 9.20 a.m., ran into an office and broke a chair there. He was told to leave the building but did not comply.

38. According to the applicant, he entered the building with the aim of talking to a deputy prosecutor and sat down on a chair which happened to be in need of repair and which broke.

39. The applicant was then arrested and was accused of the offence under Article 20.2 § 2 of the CAO of organising a demonstration that had not been approved by the town administration (see paragraph 31 above), and an offence under Article 20.1 of the CAO on account of his subsequent unruly conduct in the building housing the prosecutor's office (see paragraph 37 above).

40. Several officials of the prosecutor's office submitted statements describing the applicant's unruly conduct at the premises of the prosecutor's office. The acting town prosecutor also indicated in his statement that there had been reconstruction works in front of the building, which had entailed the presence of special equipment.

41. By a judgment of 10 August 2007 a justice of the peace convicted the applicant under Articles 20.1 and 20.2 of the CAO and sentenced him to fifteen days' detention and a fine of RUB 1,000 respectively. As regards Article 20.2 of the CAO the justice of the peace considered that, as specified by the mayor, the pavement had been not suitable for a public event and thus the demonstration had been in breach of section 8 of the Public Events

Act, which stated that a public event could be held at "locations that were suitable for the purpose of a given demonstration and where it would not endanger the safety of its participants".

42. The applicant appealed. On 17 August 2007 the Gelendzhik Town Court of the Krasnodar Region upheld the judgment on both charges.

E. Mr Achilov's arrest on 27 February 2011 and related proceedings

43. On 27 February 2011 the first applicant and some others carried out an "inspection" concerning timber processing and alleged misuse of timber. According to the applicant, he was in possession of a passport and a "human-rights defender" card. Having observed the unlawful cutting of timber, they called the police. Several police officers arrived. According to the domestic authorities, the police requested the applicant to present his identity card; he refused, using offensive language; he then "failed to comply with the repeated requests to cease his unlawful conduct and to follow the police officers to the police station". The police considered that the applicant had thereby committed the offence of failure to comply with a lawful police order under Article 19.3 of the CAO. The police decided to apply the administrative arrest procedure and took the applicant to the police station.

44. On 28 February 2011 a justice of the peace found that the applicant had committed the offence and sentenced him to seven days' administrative detention. On 2 March 2011 the Tuapsinskiy District Court of the Krasnodar Region held an appeal hearing and reduced the applicant's sentence to five days.

45. Mr Achilov complained to the district prosecutor's office about the conditions of his detention. In March 2011 the prosecutor's office replied that the police department was in charge of the detention centre and that the prosecutor's office "had issued a warning requiring the officials in charge of the detention centre to be subjected to disciplinary penalties".

II. RELEVANT DOMESTIC LAW AND PRACTICE

46. For a summary of the relevant domestic law and judicial practice, see *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 47-86, 26 April 2016; *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 216-312, 7 February 2017; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 60-75, 10 April 2018; and *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, §§ 43-48, 15 November 2018.

THE LAW

I. JOINDER OF THE APPLICATIONS

47. In accordance with Rule 42 § 1 of the Rules of Court, the Court decides to join the applications, given their factual and legal similarities.

II. STRIKING OUT (AS REGARDS THE SECOND AND THIRD APPLICANTS IN APPLICATION No. 10780/07)

A. Procedural history of the case

48. By a letter of 16 November 2011 sent to the first applicant (whose postal address had been used since 2007 for correspondence in application no. 10780/07), the applicants were informed that the Government had been given notice of the application.

49. By a letter of 13 March 2012 sent to the first applicant's postal address, the applicants were invited to appoint a representative and to submit observations by 15 May 2012 in reply to the Government's observations (see paragraph 1 above).

50. In reply to the Court's letter of 16 November 2011, on 22 March 2012 the Court received an authority form from the third applicant for a Mr Kosorukov. The latter was then asked to confirm his professional status and, following receipt of the Government's observations, to submit observations in reply and claims for just satisfaction by 15 May 2012. No reply was received.

51. The first applicant appointed representatives who then submitted observations and claims for just satisfaction on his behalf (see paragraph 1 above).

52. By letters of 15 June 2012 sent by registered post to their residential addresses, the second and third applicants were notified that the period allowed for submission of their observations had expired on 15 May 2012 and that no extension of time had been requested. The applicants' attention was drawn to Article 37 § 1 (a) of the Convention. The Court's letter to the second applicant was returned to it as having been unclaimed within the retention period. In September 2012 a copy of this letter was sent to the second applicant's other residential address, asking him to confirm that he wanted to pursue his complaints before the Court. However, no response was received. The letter to the third applicant was delivered in July 2012. However, no response was received.

53. By letters of 26 March 2019 sent by registered post, the third applicant and Mr Kosorukov were notified again in the same terms.

According to the online tracking system of the Russian postal service, those letters were delivered. No reply was received.

54. By a letter of 26 March 2019 sent by registered post, the second applicant was also notified again in the same terms. On 20 May 2019 the Court received a letter from a lawyer (Mr Bogdanov) appointed by the second applicant, indicating that the applicant had not received the Court's letters in 2012 as he had been in detention since February 2012 in connection with unrelated proceedings. The lawyer informed the Court that the second applicant intended to pursue his complaints in application no. 10780/07, and submitted a claim for just satisfaction on his behalf.

B. The Court's findings

1. The second applicant

55. The Court has previously examined situations in which applicants who wished to have their applications examined by the Court had disregarded the requirements of the Court's procedure and had failed to comply with the time-limits set for the submission of observations, without any valid excuse or related explanation (see *Polufakin v. Russia* (dec.) [Committee], no. 11316/10, 13 June 2019; *Tenditnaya v. Russia* (dec.) [Committee], 53702/09, 5 June 2018; *Kokovikhin v. Russia* (dec.) [Committee], no. 61525/14, 30 March 2017; and *Sotnikov v. Russia* (dec.), [Committee], no. 9911/08, 19 January 2016). The Court considered in the above-mentioned cases that it was no longer justified to continue the examination of the cases and decided to strike them out of the list.

56. As to the present case, even though the second applicant wishes to have his complaints (raised in application no. 10780/07) examined by the Court, he has disregarded the requirements of the proceedings before it. He did not comply with the time-limit for the submission of his observations. The Court notes that his co-applicant in application no. 10780/07 (the first applicant, Mr Achilov) did receive the Court's correspondence, including the letters of 13 March 2012 in which all three applicants were requested to appoint a lawyer and to submit observations in reply to the Government's observations. It appears that Mr Achilov did inform the other applicants of the communication procedure in application no. 10780/07. The Court also notes that in 2012 the second applicant did receive the Court's letters in another application pending before the Court (no. 54004/07; see paragraph 2 above) sent to his residential address, and submitted observations in that case (see paragraph 101 below). In September 2012 a letter regarding application no. 10780/07 was actually sent to that residential address but no reply was received (see paragraph 53 above). From 2012 onwards the second applicant maintained no correspondence with the Court in relation to application no. 10780/07. It was only after the Court's letter in March 2019

that he expressed a continued interest in the case. Overall, even though as it now transpires the second applicant had been in a detention facility after February 2012, the Court is not satisfied that in 2012 the applicant was prevented from complying with the Court's procedure in respect of application no. 10780/07. Thus the second applicant should have displayed diligence in pursuing his application before the Court, including by notifying the Court without delay of the changes to his correspondence address in respect of application no. 10780/07 at the relevant times.

57. The Court considers that, in these circumstances, it is not justified to continue the examination of application no. 10780/07 in respect of the second applicant, within the meaning of Article 37 § 1 (c) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case. In view of the above, it is appropriate to strike the application out of the list in respect of that applicant.

2. The third applicant

58. The Court considers that in the circumstances described in paragraphs 48-53 above the third applicant may be regarded as no longer wishing to pursue application no. 10780/07 within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case. In view of the above, it is appropriate to strike the application out of the list in respect of that applicant.

III. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

59. Mr Achilov complained that there had been a violation of Articles 3 and 13 of the Convention on account of the conditions of his detention from 23 April to 26 April 2007, from 9 to 16 May 2007 and from 28 February to 4 March 2011, and that he had had no effective remedies in that regard.

60. The Government submitted that there was no evidence that the conditions of the applicant's detention in April 2007 had been inadequate. In view of the prosecutor's findings, the applicant should have brought civil proceedings for compensation regarding the conditions of his detention in May 2007 and between February and March 2011.

61. The applicant's lawyers made no comments on these complaints in their observations on behalf of the applicant and did not maintain that there had been a violation of Articles 3 and 13 of the Convention.

62. Article 37 of the Convention reads as follows:

"1. The Court may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to the conclusion that

(a) the applicant does not intend to pursue his application; ...

(c) for any other reason established by the Court, it is no longer justified to continue the examination of the application.

However, the Court shall continue the examination of the application if respect for human rights as defined in the Convention and the Protocols thereto so requires."

63. The Court notes that when the parties were given notice of this part of the application they were invited to answer specific questions raised by the Court regarding the applicant's conditions of detention, under Articles 3 and 13 of the Convention. The Government made specific submissions regarding the admissibility and merits of the relevant complaints. The applicant, who was represented by two lawyers before the Court, did not make any submissions or enter any plea in relation to those issues.

64. In this context the Court considers that it is appropriate to strike this part of the application out of its list of cases in accordance with Article 37 § 1 (a) and (c) of the Convention (see, for the same approach, *Yakovlev v. Russia* [Committee], no. 44240/12 and 2 others, §§ 75-77 and 100-02, 17 December 2019).

65. There is no circumstance relating to respect for human rights as defined in the Convention and the Protocols thereto which would require the Court to continue the examination of this part of application no. 10780/07.

IV. ALLEGED VIOLATION OF ARTICLE 5 OF THE CONVENTION

66. Mr Achilov complained of a violation of Article 5 § 1 of the Convention on account of his deprivation of liberty on 22 April 2006 and from 23 to 26 April 2007.

67. Article 5 § 1, in its relevant parts, reads as follows:

"1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:

...

(b) the lawful arrest or detention of a person for non-compliance with the lawful order of a court or in order to secure the fulfilment of any obligation prescribed by law;

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

A. The parties' submissions

68. The Government submitted that Mr Achilov had not been "deprived of his liberty" on 22 April 2006 (see paragraph 10 above). The first applicant had received compensation for his detention from 24 to 26 April 2007 and could thus no longer claim "victim status" in relation to that complaint.

69. The applicant argued that there had been no factual basis for a reasonable suspicion that he had damaged any municipal walls, and that the actual purpose of his arrest on 22 April 2006 had been to prevent him from participating in a rally (see paragraph 12 above). He pointed out that no arrest record had been compiled. He had been kept in the police station for two hours after the end of his interview and had only been allowed to leave the police station after the end of the time allotted for the public event.

B. The Court's assessment

1. Admissibility

70. Firstly, the applicant did not specify any ground of illegality pertaining to his administrative arrest on 23 April 2007 and his detention until his conviction by the trial court on 24 April 2007. In any event, for the reasons set out in paragraphs 62-65 above, the Court considers that it is appropriate to strike the complaint relating to the deprivation of liberty from 23 to 26 April 2007 out of its list of cases in accordance with Article 37 § 1 (a) and (c) of the Convention.

71. As to the alleged deprivation of liberty on 22 April 2006, the Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

2. Merits

72. The parties disagreed as to whether the applicant had been "deprived of his liberty" within the meaning of Article 5 § 1 of the Convention. In order to determine whether there has been a deprivation of liberty, the starting-point for the Court's assessment is the concrete situation of the individual concerned, and account must be taken of a range of factors arising in a particular case, such as the type, duration, effects and manner of implementation of the measure in question. The distinction between deprivation of, and a restriction upon, liberty is merely one of degree or intensity and not one of nature or substance (see *Krupko and Others v. Russia*, no. 26587/07, § 34, 26 June 2014). The protection against arbitrary detention enshrined in Article 5 § 1 of the Convention applies to

deprivation of liberty of any duration, however short it may have been (ibid., § 35, with further references).

73. The right to liberty is too important in a "democratic society" within the meaning of the Convention for a person to lose the benefit of the protection of the Convention for the sole reason that he gives himself up to be taken into detention. Detention may violate Article 5 of the Convention even though the person concerned has agreed to it (see *Buzadji v. the Republic of Moldova* [GC], no. 23755/07, § 107, 5 July 2016, with further references).

74. There is *prima facie* concordant evidence capable of showing that the first applicant was indeed under the exclusive control of the authorities on the day of the events, that is to say, that he was "officially summoned by the authorities and entered premises which were under their control" (see *Creangă v. Romania* [GC], no. 29226/03, § 90, 23 February 2012). Having regard to the factual elements of the case and the case-law, the Court finds that the applicant was deprived of his liberty within the meaning of Article 5 § 1 of the Convention at least after the first interview when he sought to leave the police station and was not free to leave (see paragraph 12 above; compare with *Venskutė v. Lithuania*, no. 10645/08, § 73, 11 December 2012).

75. The Court must next ascertain whether the deprivation of liberty complied with the requirements of Article 5 § 1. It reiterates in this connection that the list of exceptions to the right to liberty set out in Article 5 § 1 is an exhaustive one and that only a narrow interpretation of those exceptions is consistent with the aim of that provision, namely to ensure that no one is arbitrarily deprived of his or her liberty (see, among many other authorities, *Giulia Manzoni v. Italy*, 1 July 1997, § 25, *Reports of Judgments and Decisions* 1997-IV).

76. The deprivation of the applicant's liberty clearly did not fall under sub-paragraphs (a), (d), (e) and (f) of paragraph 1 of Article 5. Nor was it covered by sub-paragraph (b), since there is no allegation or evidence that he failed to comply with any lawful court order or to fulfil any obligation prescribed by law (see *Iliya Stefanov v. Bulgaria*, no. 65755/01, § 73, 22 May 2008, with further references). The Government have not specified any legal basis for any legal obligation on a suspect or witness to submit to an interview during a pre-investigation inquiry and, by implication, any legal obligation to remain at the disposal of the authorities for as long as necessary for this purpose (see, by contrast, *Iliya Stefanov*, cited above, § 74). It remains unclear whether the applicant had the procedural status of a suspect or witness or another status.

77. It remains to be determined whether the deprivation of liberty falls within the ambit of sub-paragraph (c). A person may be detained under Article 5 § 1 (c) of the Convention in the context of criminal proceedings, for the purpose of bringing him or her before the competent legal authority

on reasonable suspicion of having committed an offence. The "reasonableness" of the suspicion on which deprivation of liberty must be based forms an essential part of the safeguard laid down in Article 5 § 1 (c). Having a reasonable suspicion presupposes the existence of facts or information which would satisfy an objective observer that the person concerned may have committed the offence. What may be regarded as reasonable will, however, depend on all the circumstances. Article 5 § 1 (c) of the Convention does not presuppose that the investigating authorities have obtained sufficient evidence to bring charges at the time of arrest. The purpose of questioning during detention under Article 5 § 1 (c) is to further the criminal investigation by confirming or dispelling the concrete suspicion grounding the arrest. Thus, facts which raise a suspicion need not be of the same level as those necessary to justify a conviction or even the bringing of a charge, which comes at the next stage of the process of criminal investigation (see *Merabishvili v. Georgia* [GC], no. 72508/13, § 184, 28 November 2017).

78. The criminal complaint dated 21 April 2006 related to leafleting (by unknown persons) which clearly concerned the demonstration of which the second and first applicants were the organiser and the person assisting the organiser respectively (see paragraphs 6 and 9 above). Thus, it is not unreasonable that the police found it necessary also to interview the applicant in relation to this. However, it was (and remains) unclear what specific offence under the Criminal Code was in issue. The Court also notes that the summonses referred to Article 73 of the Code of Criminal Procedure, which concerns the list of circumstances that need to be established in criminal proceedings. Neither this Article nor the summonses specified the applicant's procedural status during his time in the police station.

79. It follows from the above that the applicant's "deprivation of liberty" could not have been effected "for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence" within the meaning of Article 5 § 1 (c). It has not been argued that the situation complained of was properly justified under the last limb of Article 5 § 1 (c) ("when it is reasonably considered necessary to prevent his committing an offence") (see *S., V. and A. v. Denmark* [GC], nos. 35553/12 and 2 others, §§ 78-137, 22 October 2018), and the Court does not find it necessary to examine this point.

80. Hence, the deprivation of liberty to which the applicant was subjected did not have any legitimate purpose under Article 5 § 1 and was arbitrary (see, in a similar context, *Krupko and Others*, cited above, §§ 39-41).

81. There has therefore been a violation of Article 5 § 1 of the Convention in respect of Mr Achilov as regards the events of 22 April 2006.

V. ALLEGED VIOLATION OF ARTICLE 6 OF THE CONVENTION

82. Mr Achilov further complained that the civil courts' omission in 2008 (paragraphs 19-21 above) to examine his claim relating to the conditions of his detention in April 2007 had violated Article 6 § 1 of the Convention, which in its relevant part reads as follows:

> "In the determination of his civil rights and obligations ... everyone is entitled to a fair ... hearing ... by [a] ... tribunal ..."

83. The Government argued that the adequacy or otherwise of the applicant's conditions of detention had been "taken into account" by the civil court during the determination of his claim in relation to the unlawful sentence of administrative detention (see paragraph 19 above).

84. The applicant maintained his complaint.

85. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

86. The domestic courts did not clearly dismiss the applicant's claim for non-pecuniary damage on account of his conditions of detention as non-justiciable in general and, in particular, within a civil case in which at least one of the claims was related to the sentence of administrative detention and the ensuing discontinuation of the related proceedings under the CAO.

87. Having examined the text of the court decisions the Court finds no indication that the allegedly unsatisfactory conditions of pre-trial or post-trial detention played any role in determining the non-pecuniary award, still less that they were treated as a separate ground or claim within the civil proceedings initiated by the applicant. In particular, the court decisions contain no factual determination pertaining to this matter or any corresponding legal assessment.

88. Thus, the Court concludes that the claim concerning the applicant's conditions of detention was not examined by the domestic courts. This amounted to a violation of the applicant's access to court. Even assuming that the phrase "in view of the claimant's physical and mental suffering and the actual circumstances of the case" might amount to an assessment by the trial court of the conditions of detention when determining the quantum of compensation (see paragraph 20 above), the fact remains that the judgment contained no reasoning whatsoever on that aspect of the case, in particular as regards the established facts and their relevance to the applicant's mental suffering. This omission amounted to a failure by the court to adequately state the reasons on which the judgment was based (see *Moreira Ferreira v. Portugal (no. 2)* [GC], no. 19867/12, § 84, 11 July 2017).

89. Accordingly, there has been a violation of Article 6 § 1 of the Convention in respect of Mr Achilov.

VI. ALLEGED VIOLATION OF ARTICLES 10 AND 11 OF THE CONVENTION

90. Mr Achilov complained that there had been a violation of Articles 10 and 11 of the Convention with regard to the events of 22 April 2006 and 23 April, 9 May and 10 August 2007 and the corresponding proceedings brought by him or against him.

91. In application no. 54004/07, Mr Ivanov lodged complaints under Articles 10, 11 and 13 of the Convention in relation to his prosecution after the demonstration of 10 August 2007 (see paragraphs 2 and 37-42 above).

92. The Court considers that the complaints in respect of the events of 22 April 2006 and 10 August 2007 fall to be examined under Article 11 of the Convention and that those in respect of the events of 23 April and 9 May 2007 fall to be examined under Article 10 of the Convention.

93. Articles 10 and 11 of the Convention read as follows:

Article 10

"1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority ...

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime ..."

Article 11

"1. Everyone has the right to freedom of peaceful assembly ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. ..."

A. The parties' submissions

1. The Government

94. The Government submitted that the town administration had given replies to the notifications concerning the public events and had lawfully requested that their organisers refrain from holding them. Neither the applicant nor any other person had sought judicial review of those replies as provided for by section 19 of the Public Events Act. Instead, they had committed administrative offences and their unlawful actions had been terminated. Thus, the applicant had not exhausted domestic remedies with regard to the events of 22 April 2006 and 9 May and 10 August 2007.

95. In addition, in application no. 54004/07, the Government argued in relation to the demonstration of 10 August 2007 that the second applicant should have brought proceedings under Chapter 25 of the Code of Civil Procedure in response to the town administration's letter of 6 August 2007 (see paragraph 31 above). In their further observations, the Government also stated that Mr Achilov could have brought civil proceedings for compensation in respect of non-pecuniary damage.

96. As to the event of 23 April 2007, the first applicant had exercised his right to hold a solo demonstration. However, he had then started to behave in an unruly and otherwise unlawful manner (see paragraph 15 above). This behaviour and the imposition on other citizens had consisted in his openly calling for the overthrow of the President of Russia and the Regional Governor, speaking loudly and defiantly, attempting to hit a police officer with his placard and touching the officer's uniform, and then trying to run away. On 24 April 2007 he had been convicted of the administrative offence of minor hooliganism.

2. Mr Achilov

97. As to the event of 22 April 2006, the applicant argued that the mayor's reply of 15 April 2006 (see paragraph 7 above) had been unlawful and, above all, that he had been detained in the police station in an unlawful and arbitrary manner for the sole purpose of preventing him from staging the rally.

98. As to the solo demonstration of 23 April 2007, the applicant submitted that he had been punished for criticising public officials, whereas the allegations relating to grabbing the officers' uniforms or trying to hit an officer with a placard had not been established in court.

99. The police had unlawfully interrupted his solo demonstration of 9 May 2007; no reasons had been provided. His event had not posed any threat to public order or the rights of others. He had then been subjected to a fine and detention, in substance for refusing to cease his lawful solo demonstration.

100. The applicant maintained his complaint in respect of the demonstration of 10 August 2007.

3. Mr Ivanov

101. The applicant argued that prior notification in respect of the demonstration of 10 August 2007 had been lodged in compliance with Russian law (see paragraph 30 above). The mayor's reply had only contained a recommendation to refrain from holding the demonstration and, in breach of Russian law, had contained no proposal for an alternative venue (see paragraph 31 above). Thus, his arrest and conviction for administrative

offences had not been "necessary in a democratic society" under Articles 10 and 11 of the Convention.

B. The Court's assessment

1. Admissibility

(a) Rally of 22 April 2006

102. The Court notes, together with the Government, that the possibility existed of seeking judicial review of the mayor's reply dated 15 April 2006 (see paragraph 7 above). However, the Government did not specify whether Mr Achilov, who was not the organiser of the rally but (merely) a person assisting the organiser, had standing to seek judicial review. Furthermore, the Court notes that the applicant sought the institution of criminal proceedings in relation to the events that actually occurred on 22 April 2006, including his alleged deprivation of liberty under the pretext of unlawful leafleting in relation to the rally (see paragraphs 74-81 above). The focus of the applicant's complaint in that connection was on his being prevented from participating in the rally. A judicial review of the mayor's reply would not have been directly pertinent to his complaint. In view of these considerations, the Court is not prepared to dismiss the complaint for non-exhaustion of domestic remedies in the present case.

(b) Demonstration of 9 May 2007

103. As to the demonstration planned for 9 May 2007, the Court notes that the thrust of Mr Achilov's complaint relates to his solo demonstration and his prosecution for administrative offences (see paragraphs 24-29 above) rather than to the mayor's decision concerning a group event (see paragraph 23 above). Thus, the Government's argument that the applicant could have challenged the town administration's reply dated 4 May 2007 is irrelevant to the scope of the complaint before the Court.

(c) Demonstration of 10 August 2007

104. As to the demonstration of 10 August 2007, the Court notes that Mr Achilov's complaint under Article 11 of the Convention concerning the mayor's reply of 6 August 2007 asking the organisers to refrain from holding the rally (see paragraph 31 above) was lodged with the Court on 14 February 2009. Mr Achilov had not sought judicial review of the mayor's reply, nor had he articulated any corresponding complaint in other proceedings. Accordingly, assuming, in the applicant's favour, he had no remedy to exhaust, this complaint was introduced out of time and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

105. However, in so far as Mr Ivanov complained before this Court about his prosecution after the demonstration and Mr Achilov also complained about the dispersal of the ongoing demonstration (see paragraph 35 above), the Court notes that these complaints were raised before it on 14 October 2007 and 14 February 2009 respectively. Mr Achilov was issued with a decision refusing to prosecute public officials, of which he then sought judicial review before lodging a complaint with this Court within six months of the appeal decision of 20 August 2008 (see paragraphs 36 above). The Government have not disputed that a criminal complaint pertaining to unlawfully impeding a public event was "effective" in this factual context. The second applicant complained on 14 October 2007 about the administrative offence proceedings that ended on 17 August 2007 (see paragraphs 37 and 42 above). In addition, as to his pre-trial deprivation of liberty on 10 August 2007, the Court notes that he lodged the relevant complaint with the Court on 14 October 2007. These complaints were lodged in time.

(d) Conclusion

106. The Court notes that the complaints relating to the demonstrations of 22 April 2006 and 23 April, 9 May and 10 August 2007 are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that they are not inadmissible on any other grounds. They must therefore be declared admissible.

2. Merits

(a) Rally of 22 April 2006

107. The Court has already found that the applicant's presence in the police station was related to the rally and that at least part of his time there amounted to an arbitrary deprivation of liberty (see paragraphs 74-81 above).

108. It has not been substantiated that it was not practicable or otherwise appropriate to continue the applicant's interview in relation to the complaint about the leafleting at another time. Mr Achilov's continued deprivation of liberty on 22 April 2006, which prevented him from taking part in the rally, also constituted an "interference" under Article 11 of the Convention. This interference was not "prescribed by law" nor was it shown to be "necessary in a democratic society". Accordingly, the Court concludes that there has also been a violation of Article 11 of the Convention.

(b) Solo demonstration of 23 April 2007

109. It has not been contested, and the Court has no reason to hold otherwise, that the sentence of administrative detention constituted an "interference" with the applicant's right to freedom of expression, at least as

regards his prosecution in relation to the message on one of his placards stating "Down with Putin and Tkachev!", which the trial court classified as a call for the overthrow of the Head of the State and the Governor of the Krasnodar Region and as an ingredient of the offence of minor hooliganism (see paragraphs 15 and 96 above). Thus, irrespective of the validity of the applicant's prosecution in relation to certain aspects of his actual conduct, which he did not claim was part of his expression protected by Article 10 of the Convention and which the appeal court did not confirm as factually established, the Court is not satisfied that it was "necessary in a democratic society" to prosecute the applicant in relation to his placard. While noting that the appeal court discontinued the case, neither its reasoning nor that of the civil court discloses any acknowledgment in respect of the applicant's freedom of expression (see paragraphs 18 and 20 above). In any event, the compensation award of EUR 270 was manifestly insufficient to deprive the applicant of his "victim" status under the Convention.

110. The Court concludes that there has been a violation of Article 10 of the Convention in respect of Mr Achilov with regard to the solo demonstration of 23 April 2007 (see, in a similar context, *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 223-24, 26 April 2016, and *Nikolayev v. Russia* [Committee], no. 61443/13, §§ 56-58, 12 February 2019).

(c) Demonstration of 9 May 2007

111. The Court notes that when sentencing the applicant to a fine and, especially, to a period of detention the domestic courts did not establish whether what had actually happened amounted to a "group event", and did not refute the applicant's argument that he had been holding a solo demonstration (see paragraphs 26-28 above). The Court considers that the relevant factual and legal aspects of the present case are similar to those it examined in *Novikova and Others* (cited above, §§ 186-212). Having examined the parties' submissions and the available material, the Court finds no reason to depart from those findings.

112. Even assuming that there was a group event (for this approach see, for example, *Muchnik and Mordovin v. Russia* [Committee], nos. 23814/15 and 2707/16, §§ 45-54, 12 February 2019), the Court considers that the relevant factual and legal aspects of the present case are similar to those it examined in *Lashmankin and Others* (cited above, § 461). The Court finds no reason to depart from those findings.

113. The Court concludes that there has been a violation of Article 10 of the Convention in respect of Mr Achilov with regard to the demonstration of 9 May 2007.

(d) Demonstration of 10 August 2007

114. In so far as Mr Achilov complained about the termination of the demonstration, the Court first notes that it is precluded from assessing the validity of the grounds adduced by the mayor for objecting to the demonstration (see paragraph 105 above). It was briefly mentioned in the domestic proceedings (see paragraph 36 above) that the demonstrators had placed themselves on the road, impeding traffic and the reconstruction works in the immediate vicinity. However, the Court is not satisfied that all the relevant facts were properly established in the course of the various sets of domestic proceedings and subjected to a thorough assessment in order to ascertain whether the termination of the demonstration (or of the applicant's participation therein) was "necessary in a democratic society", in particular on account of any valid reasons going beyond the mere illegality of the demonstration (see *Lashmankin and Others*, cited above, § 461), for instance in pursuance of the protection of the "rights of others" and public safety. The courts did not adduce any reasons which would be both relevant and sufficient to justify the "interference". In particular, it was not ascertained whether and, if so, in what manner and to what extent the demonstration caused any disruption to ordinary life (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, § 155 et seq., ECHR 2015). The Court concludes that there has been a violation of Article 11 of the Convention in respect of Mr Achilov on that account (see, in the same vein, *Nikolayev* [Committee], cited above, § 57, and the cases cited therein).

115. In so far as Mr Ivanov complained about his arrest and prosecution after the demonstration, the Court is not satisfied, on the basis of the available material and the parties' submissions, that the applicant's pre-trial deprivation of liberty on 10 August 2007 was related to his participation in the demonstration up to the point at which it was terminated by the police and thus could have constituted an "interference" under Articles 10 or 11 of the Convention. Similarly, the Court considers that his prosecution under Article 20.1 of the CAO in relation to his subsequent conduct in the premises of the prosecutor's office was not related to the exercise of his right to freedom of assembly during the demonstration, which is the thrust of the complaint before the Court (compare with *Taranenko v. Russia*, no. 19554/05, §§ 70-71, 15 May 2014). By contrast, his prosecution under Article 20.2 of the CAO and the fine of RUB 1,000 imposed on him for staging the demonstration at an "unsuitable venue" did constitute an "interference" under Article 10 of the Convention. However, the applicant has not adduced any particular argument pertaining to this conviction. For its part, the Court notes that it had a legal basis in section 8 of the Public Events Act and Article 20.2 of the CAO. The applicant raised no arguments relating to the proportionality of the "interference", in particular in view of the low amount of the fine (see, in a similar context, *Muchnik and Mordovin*, cited above, §§ 49-50). The Court concludes in this specific

context that there has been no violation of Article 11 of the Convention in respect of Mr Ivanov.

VII. OTHER ALLEGED VIOLATIONS OF THE CONVENTION

116. Mr Ivanov also complained under Article 5 of the Convention about his deprivation of liberty prior to and during the trial on 10 August 2007 (see paragraph 39 above). Mr Achilov complained under Article 5 of the Convention about his deprivation of liberty on 27 February 2011 and under Article 6 of the Convention that he had not received a fair hearing in 2011 (see paragraphs 43-44 above), in particular on account of the lack of any opportunity to examine witnesses.

117. Lastly, the Court has examined the remaining complaints as submitted by Mr Achilov in application no. 10780/07 and Mr Ivanov in application no. 54004/07.

118. However, in the light of all the material in its possession, and in so far as the matters complained of are within its competence, the Court finds that they do not disclose any appearance of a violation of the rights and freedoms set out in the Convention or its Protocols. Accordingly, the relevant parts of the applications are manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 (a) and 4 of the Convention.

VIII. APPLICATION OF ARTICLE 41 OF THE CONVENTION

119. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

A. Damage

120. Mr Achilov applicant claimed 30,000 euros (EUR) in respect of non-pecuniary damage.

121. The Government contested the claim.

122. The Court awards Mr Achilov EUR 12,700 in respect of non-pecuniary damage, plus any tax that may be chargeable.

B. Costs and expenses

123. Mr Achilov also claimed EUR 1,500 for the costs and expenses incurred before the Court.

124. The Government contested the claim.

125. Regard being had to the documents in its possession and to its case-law, the Court grants the claim.

C. Default interest

126. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join applications nos. 10780/07 and 54004/07;

2. *Decides* to strike the second and third applicants' complaints in application no. 10780/07 out of its list of cases in accordance with Article 37 of the Convention;

3. *Decides* to strike Mr Achilov's complaints in application no. 10780/07 under Articles 3 and 13 of the Convention and his complaint under Article 5 § 1 of the Convention (concerning the deprivation of liberty from 23 to 26 April 2007) out of its list of cases in accordance with Article 37 of the Convention;

4. *Declares* Mr Achilov's complaints under Article 5 § 1 (concerning the events on 22 April 2006), Articles 6 § 1, 10 and 11 of the Convention admissible and the remainder of application no. 10780/07 inadmissible;

5. *Declares* Mr Ivanov's complaint under Article 11 of the Convention admissible and the remainder of application no. 54004/07 inadmissible;

6. *Holds* that there has been a violation of Article 5 § 1 of the Convention on account of Mr Achilov's deprivation of liberty on 22 April 2006;

7. *Holds* that there has been a violation of Article 6 § 1 of the Convention on account of the civil proceedings brought by Mr Achilov in 2008;

8. *Holds* that there has been a violation of Article 10 § 2 of the Convention in respect of Mr Achilov on account of the solo demonstrations of 23 April and 9 May 2007;

9. *Holds* that there has been a violation of Article 11 § 2 of the Convention in respect of Mr Achilov on account of the demonstration of 22 April 2006;

10. *Holds* that there has been a violation of Article 11 § 2 of the Convention in respect of Mr Achilov on account of the termination of the demonstration of 10 August 2007;

11. *Holds* that there has been no violation of Article 11 § 2 of the Convention in respect of Mr Ivanov on account of his prosecution in relation to the events of 10 August 2007;

12. *Holds*

(a) that the respondent State is to pay Mr Achilov, within three months, the following amounts, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:

(i) EUR 12,700 (twelve thousand seven hundred euros), plus any tax that may be chargeable, in respect of non-pecuniary damage;

(ii) EUR 1,500 (one thousand five hundred euros), plus any tax that may be chargeable to him, in respect of costs and expenses;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

13. *Dismisses* the remainder of the claim for just satisfaction.

Done in English, and notified in writing on 9 June 2020, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova
Deputy Registrar

Helen Keller
President